

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA  
**COUNTY CIVIL**

COLONIAL MOBILE MANOR, LIMITED,  
LLLP d/b/a COLONIAL MOBILE MANOR,  
Plaintiff,

vs.

Case No. 2015-CC-001274

MARLIN J. YODER a/k/a MARLIN JAY  
YODER and ANY UNKNOWN TENANT(s),  
Defendants.

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**PLAINTIFF'S REPLY TO AFFIRMATIVE DEFENSES**

Plaintiff, COLONIAL MOBILE MANOR, LIMITED, LLLP, by and through the undersigned counsel, answers the affirmative defenses of the Defendant and as to each affirmative defense states:

**First Affirmative Defense**

Plaintiff avoids said affirmative defense. Plaintiff has ceased accepting rent from the Defendant since it notified Defendant that he was in violation of the Park rules, and that it sought and terminated Defendant's right to reside on the premises; notwithstanding same, Defendant is obligated to pay rent into the Registry of the Court to defend the instant eviction.

**Second Affirmative Defense**

Plaintiff send Defendant all required notices to terminate Defendant's tenancy, by certified mail, return receipt requested, and also posted said notices.

**Third Affirmative Defense**

Denied.

**Fourth Affirmative Defense**

Denied. To the contrary, Plaintiff has given this Defendant multiple opportunities to comply

with Park rules and regulations and many notices.

**Fifth Affirmative Defense**

Denied.

**Sixth Affirmative Defense**

Denied. Moreover, the statement that "Plaintiff failed to meet the condition precedent" is inadequate to state an affirmative defense.

**Seventh Affirmative Defense**

Denied.

**Eighth Affirmative Defense**

Denied.

**Ninth Affirmative Defense**

Denied.

**CERTIFICATE OF SERVICE**

**I HEREBY CERTIFY** that a true copy of the foregoing Plaintiff's Reply to Affirmative Defenses has been furnished in accordance with Florida Rule of Judicial Administration 2.516 to DEREK W. EISEMANN, ESQUIRE, 1900 Ringling Boulevard, Sarasota, Florida, 34236, Service E-Mails: [deisemann@smrl.com](mailto:deisemann@smrl.com) and [mfelton@smrl.com](mailto:mfelton@smrl.com), this 23rd day of April, 2015.

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